

		973.) Here, Plaintiffs fraud allegations relate to the contract in general and no fraud allegation refers to the arbitration provision. Thus, Plaintiff's rescission defense does not apply. Accordingly, Defendants have shown the existence of an agreement to arbitrate which encompasses the claims at issue and Plaintiffs have failed to demonstrate a defense to enforcement. Thus, Defendants' motion is granted. The Court sets an OSC re: ADR for 3/12/2027 at 9:00 a.m., in Dept. C32.
2.	BAQI VS. MACFOXBIKE 2026-01571161	MOTION FOR PREFERENCE The unopposed Motion for Trial Preference by Plaintiff Farah Baqi, a minor, by a through Guardian ad Litem Faridoon Baqi is GRANTED. Code of Civil Procedure section 36(b) states, "A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole. A civil action subject to subdivision (a) shall be given preference over a case subject to this subdivision." Section 36(f) further provides, "(f) Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party." Here, Plaintiff was born on 1/9/13 and is currently 13 years old. She sues for personal injuries sustained while she was riding an E-bike and therefore has a substantial interest in the litigation. Plaintiff's counsel declares that all essential parties have been served with process pursuant to Code of Civil Procedure section 36(c)(1).) Plaintiff timely served the motion on Defendants by mail on 7/9/26. The motion is unopposed. Plaintiff is entitled to trial setting preference under section 36(b) and the motion is granted. Counsel shall appear at the hearing to discuss their availability for trial on a date within 120 days.